

added)], 25, 32-36, 40-43 [Plaintiff's presentation of vehicle for repair on multiple occasions and defect not fixed], 47-61 [TSBs and NHTSA complaints].)

While Plaintiffs may not ultimately be able to prove these allegations by clear and convincing evidence as Civil Code section 3294 requires, they allege sufficient facts to support a claim for punitive damages for purposes of a motion to strike. GM does not cite any authority that precludes Plaintiffs from asserting claims for both punitive damages and the Song-Beverly Act civil penalties at the pleading stage. (*See Clauson v. Superior Court, supra*, 67 Cal.App.4th at 1256.)

Conclusion and Ruling

In the Court's discretion, the motion to strike is therefore **denied**.

18. 9:00 AM CASE NUMBER: C25-02571

CASE NAME: FAN PEI KOUNG VS. JOSIANE PEREIRA

HEARING IN RE: APPLICATION TO VACATE PRELIMINARY INJUNCTION (SET PER ORDER FILED 2/4/2026)

FILED BY:

TENTATIVE RULING:

The Parties are ordered to appear remotely via zoom. Both parties are self-represented and the Court is not convinced that proper notices have been provided for the hearing on Respondent Josiane Pereira's Application to Vacate Preliminary Injunction. The Court also issues an order to show cause as to why venue is proper in Contra Costa County. The parties do not live in the State of California.

19. 9:00 AM CASE NUMBER: MSC21-01391

CASE NAME: JFP-AG/SAN RAMON VS RM 15 SAFE CORP

HEARING ON SUMMARY MOTION JUDGMENT FILED BY PLAINTIFFS

FILED BY: JFP-AG/SAN RAMON LLC A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Before the Court is Plaintiff JFP-AG/San Ramon, LLC, Plaintiff JFP-AG/Batesville, LLC, Plaintiff JFP-AG/Little Rock, LLC, Plaintiff JFP-AG/Springerville, LLC, Plaintiff JFP-AG/Tuscon, LLC, Plaintiff JFP-AG/Roswell, LLC, Plaintiff JFP-AG/Ruidoso, LLC, Plaintiff JFP-AG/Longview, LLC, and Plaintiff JFP-AG/Carthage, LLC (collectively, "Plaintiffs")'s motion for summary judgment, or in the alternative, summary adjudication. The Motion is opposed by Defendant RM Safe 15 Corp. and Defendant San Ramon Hannibal, LLC (collectively, "Defendants"). The Motion relates to Plaintiffs' Verified Amended Complaint ("VAC") for (1) declaratory relief, (2) reformation of contract (for mistake, fraud and inequitable conduct), and (3) reformation of contract (for failure of consideration).

As a threshold issue, Defendants argue that Plaintiffs Motion is untimely.

A motion for summary judgment must be "heard no later than 30 days before the date of trial." (CCP § 437c(a)(3).) Furthermore, notice of the motion must be "served on all other parties to the action at least 81 days before the time appointed for the hearing," with additional time if the motion is served other than by personal delivery. (CCP § 437c(a)(2).) Thirty days before the April 13, 2026 court trial is Saturday March 14th, and the next court day is Monday March 16th. Department 16's regular law and motion date is Wednesday and the hearing date immediately before the summary judgment hearing